

Understanding women's rights under Islamic law

Analysis run: September 12, 2026

PROVIDER

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MODEL

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LENGTH

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SYSTEM PROMPT

You are an expert AI content generator specializing in creating structured article.

USER PROMPT

Write a concise, self-contained article entry for the title: "Understanding women's rights under Islamic law".

Overall topic for alignment: Gender justice and women's rights in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:

- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.

- Place external links only in the "References" section; do not include inline external links in the body text.

- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.

- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.

- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Women's rights under Islamic law cannot be accurately understood through simple claims that Islam either fully guarantees gender justice or is inherently oppressive. The article argues that a careful analysis must distinguish between *sharī'a* as divine guidance, *fiqh* as human legal interpretation, scripture, theology, historical practice, culture, and modern state law. Islamic legal thought is diverse, and interpretations of women's rights have varied across regions, periods, and legal schools.

The Qur'an is presented as the foundational source for Islamic ethics and law. It addresses women as morally responsible believers, affirms human dignity and justice, and includes rules on marriage, inheritance, divorce, property, testimony, modesty, and social welfare. Qur'anic reforms in seventh-century Arabia gave women recognized rights in areas such as inheritance, marriage contracts, property ownership, and protection from exploitative customs. However, some verses have been interpreted in gender-differentiated ways, especially on inheritance, marital authority, divorce, and testimony. The key debate is whether such texts should be read as fixed rules, contextual reforms, moral trajectories, or principles requiring renewed interpretation through *ijtihād*.

Historically, Islamic law was never a single uniform code. As Muslim societies expanded, jurists developed *fiqh* in conversation with local customs, political authority, class structures, and economic conditions. Women's actual rights therefore depended not only on scripture or doctrine but also on courts, custom, family systems, poverty, patriarchy, slavery, colonial disruption, and state power. Some women held property, funded endowments, taught religious sciences, and influenced public life, while others faced severe restrictions.

The article outlines the diversity of Sunni and Shi'i theology and the four major Sunni legal schools. The Hanafi, Maliki, Shafi'i, and Hanbali schools share core sources but differ in methods and rulings, including on marriage guardianship, divorce, maintenance, welfare, and contractual stipulations. These differences show that Islamic law contains multiple legal possibilities rather than one fixed position.

In key legal areas, marriage is treated as a contract requiring consent, though rules on guardianship differ. Divorce includes husband-initiated *ṭalāq*, wife-initiated *khul'*, and judicial divorce, but access and fairness vary. Women's property ownership is well established in classical law, while inheritance rules remain debated in light of changing economic roles. Islamic tradition values knowledge, and women have historically participated in religious learning, though authority has often been male-dominated. Modesty applies to both men and women, and veiling practices vary; a rights-based approach rejects coercion either to veil or unveil.

The article also distinguishes Muslim-majority contexts, where states codify selected versions of Islamic family law, from Muslim-minority contexts, where Muslims often follow civil law while using religious

guidance informally. In both, accountability is essential to protect women's dignity, consent, safety, and legal agency.

Orientalist narratives have often portrayed Islam as uniquely oppressive and Muslim women as passive victims, ignoring colonial power, local reform, class differences, and women's own religious commitments. Yet rejecting orientalism should not mean denying real injustices. Similarly, engagement with human rights should be critical but constructive, asking whether legal rules protect dignity, equality, consent, remedies, religious freedom, and freedom from harm.

The article's humanistic approach emphasizes distinguishing divine guidance from fallible interpretation, recognizing women as full moral and legal agents, including women in interpretation and authority, reviewing inherited rules in light of changed realities, protecting consent and bodily integrity, and grounding reform in justice, mercy, dignity, credible scholarship, community dialogue, and lawful institutions. Women's rights in Islamic law are therefore best understood as an ongoing moral and legal conversation, not a closed question.

FULL CONTENT

Understanding Women's Rights Under Islamic Law

Women's rights under Islamic law, or *sharī'a* (شريعة), are often discussed through simplified claims: either that Islam fully guarantees gender justice, or that Islamic law is inherently oppressive. A more accurate understanding requires distinguishing between scripture, theology, jurisprudence, historical practice, culture, and modern state law. Islamic legal thought is diverse, and women's rights have been interpreted differently across time, place, and legal schools.

This article offers a concise, self-contained overview of how women's rights are understood in relation to *sharī'a*, with attention to Qur'anic foundations, juristic traditions, historical contexts, majority and minority Muslim settings, orientalist perspectives, international human rights, and a humanistic approach to interpretation.

Key Terms

Several Arabic terms are central to understanding the topic:

- **Sharī'a:** Literally “the path”; in Islamic thought, it refers to divine guidance for ethical and legal life.

- **Fiqh** (فقه): Human understanding of *sharī'a*, developed by jurists. Unlike *sharī'a*, *fiqh* is interpretive and historically diverse.
- **Qur'ān** (القرآن): The central scripture of Islam and a primary source of law and ethics.
- **Sunnah** (سنة): The normative example of the Prophet Muhammad, known through reports called *ḥadīth*.
- **Ijtihād** (اجتهاد): Independent legal reasoning.
- **Ijma'** (إجماع): Scholarly consensus.
- **Qiyās** (قياس): Analogical reasoning.
- **Maqāṣid al-sharī'a** (مقاصد الشريعة): The higher objectives of Islamic law, often described as protecting religion, life, intellect, lineage, and property; many modern scholars also emphasize dignity and justice.
- **'Adl** (عدل): Justice.
- **Raḥma** (رحمة): Mercy or compassion.
- **Karāma** (كرامة): Human dignity.
- **Wilāya** (ولاية): Guardianship or legal authority, interpreted differently across contexts.
- **Qiwāma** (قوام): A Qur'anic concept often translated as responsibility, maintenance, or authority within marriage; its interpretation is debated.

Qur'anic Foundations of Women's Rights

The Qur'an is the foundational source for Islamic legal and ethical reasoning. It addresses women as moral agents responsible before God, affirms spiritual equality, and includes rules related to marriage, inheritance, divorce, modesty, property, testimony, family duties, and social welfare.

Several broad principles are important:

1. **Spiritual equality:** Men and women are both addressed as believers, morally accountable, and capable of righteousness.
2. **Human dignity:** The Qur'anic idea of human dignity applies to all human beings.
3. **Justice and fairness:** Justice, or *'adl*, is a recurring Qur'anic demand.
4. **Mutual rights and responsibilities:** Marriage is described through ideas of affection, mercy, protection, and mutual obligation.
5. **Property and contract rights:** Classical Islamic law generally recognized women's capacity to own property, receive gifts, inherit, and enter contracts, though practical access varied by society.
6. **Protection from exploitation:** Qur'anic reforms addressed practices such as forced inheritance of women, denial of marital rights, and arbitrary divorce customs in the early Arabian context.

At the same time, some Qur'anic verses have been interpreted in gender-differentiated ways, especially regarding inheritance shares, marital roles, divorce procedures, and testimony. The central legal and ethical question is how to interpret these texts: as fixed rules, context-specific reforms, moral trajectories, or principles requiring renewed application through *ijtihād*.

Historical Context

Islam emerged in seventh-century Arabia, where tribal customs shaped family life, inheritance, marriage, and social status. Qur'anic reforms introduced rights that were significant in that environment, including regulated marriage contracts, women's inheritance, restrictions on unlimited polygyny, and obligations toward widows, orphans, and divorced women.

After the Prophet Muhammad's lifetime, Muslim societies expanded across regions with different cultures: Arabia, Persia, North Africa, South Asia, Central Asia, West Africa, and beyond. As Islam spread, jurists developed *fiqh* in conversation with local customs, imperial administration, social hierarchies, and economic conditions.

This means that "Islamic law" as lived historically was never a single uniform code. Court practice, local custom (*urf*), political authority, family structure, and class all affected women's actual rights. Elite women in some periods controlled property, funded charitable endowments, taught religious sciences, or influenced politics. Other women faced restrictions rooted in patriarchy, poverty, slavery, colonial disruption, or social custom rather than scripture alone.

Theological Schools and Legal Reasoning

Islamic theology shaped how Muslims understood divine justice, moral responsibility, and human reason. Major Sunni theological schools include:

- **Ash'arī** theology, often associated with emphasis on divine sovereignty and scriptural authority.
- **Māturīdī** theology, often associated with a somewhat stronger role for reason in moral understanding.
- **Atharī** or traditionalist theology, often emphasizing transmitted texts and caution toward speculative theology.

In Shi'i Islam, especially Twelver Shi'ism, theology includes strong emphasis on divine justice and the authority of the Imams in interpreting religious guidance.

These theological approaches do not map neatly onto one position on women's rights. However, they influence debates over whether moral values such as justice and dignity can guide reinterpretation, how much weight is given to historical context, and how jurists balance scripture, reason, custom, and public welfare.

The Four Major Sunni Juristic Schools

The four major Sunni *madhāhib* (مذاهب), or juristic schools, developed sophisticated legal methods. They agree on core sources but differ in interpretation and legal reasoning.

Hanafi School

The **Hanafi** school historically became influential in regions such as Iraq, Central Asia, the Ottoman Empire, and South Asia. It is often associated with broader use of legal reasoning, analogy, and juristic preference (*istihsān*).

In matters affecting women, Hanafi law has sometimes been noted for recognizing a mature woman's capacity to contract her own marriage, though social and statutory rules vary widely. Hanafi doctrine also developed detailed rules on maintenance, divorce, dower (*mahr*), and property.

Maliki School

The **Maliki** school developed in Medina and became prominent in North and West Africa. It gives weight to the practice of the people of Medina and recognizes public welfare (*maṣlaḥa*) in legal reasoning.

Maliki jurisprudence has historically offered certain avenues for judicial divorce in cases of harm, abandonment, or failure of maintenance. Its attention to social welfare has made it important in modern reform discussions.

Shafi'i School

The **Shafi'i** school, influential in Egypt, East Africa, Southeast Asia, and parts of the Middle East, is known for systematic legal theory and careful classification of sources.

In family law, Shafi'i jurists elaborated rules on guardianship, marriage contracts, maintenance, divorce, and custody. As with other schools, modern states that draw from Shafi'i law may codify rules selectively and adapt them through legislation.

Hanbali School

The **Hanbali** school, associated with a strong emphasis on textual evidence, has been influential in parts of the Arabian Peninsula and beyond. It is sometimes described as more text-centered, though it also contains internal diversity.

Hanbali law has contributed to debates on marriage conditions, contractual stipulations, and family obligations. Some modern reformers have drawn on Hanbali doctrines allowing women to include conditions in marriage contracts, such as restrictions related to polygyny or residence.

Women's Rights in Key Areas

Marriage

In Islamic law, marriage (*nikāḥ*) is a contract with ethical and spiritual dimensions. A woman's consent is generally treated as necessary, though juristic schools differ on the role of the guardian (*walī*). The

marriage contract may include a dower (*mahr*) owed to the bride, not her family. In some legal traditions, women may negotiate conditions in the contract.

Gender justice concerns arise when social pressure, child marriage, forced marriage, or unequal bargaining power undermines consent. Modern reforms often focus on minimum marriage age, registration, judicial oversight, and enforceable contract conditions.

Divorce

Classical law recognized multiple forms of divorce, including husband-initiated divorce (*ṭalāq*), wife-initiated divorce through compensation (*khul'*), and judicial divorce (*tafrīq* or *faskh*) under certain conditions. The balance of access to divorce has varied greatly by school and state law.

Modern debates often focus on preventing arbitrary divorce, ensuring financial rights, recognizing harm, and making legal procedures fair and accessible.

Inheritance and Property

The Qur'an assigns inheritance shares to women and men in specified family relationships. In some cases, a male heir receives twice the share of a female heir of the same degree, while in other cases women may receive equal or different shares depending on family structure. Classical jurists linked inheritance rules to financial obligations, especially male maintenance duties.

Women's property ownership is well established in classical law. The justice question today often concerns whether legal rules, economic realities, and family expectations still align. In societies where women also provide financially, some scholars argue for renewed interpretation through the objectives of justice and welfare.

Education and Religious Authority

Islamic tradition values knowledge (*ilm*). Historically, women transmitted *ḥadīth*, taught, endowed schools, and participated in religious life, though institutional authority was often male-dominated. Contemporary Muslim women serve as scholars, judges in some jurisdictions, professors, activists, and legal reform advocates.

A gender-just approach asks not only whether women may learn, but whether they can participate in interpreting the tradition that governs their lives.

Modesty and Public Life

Modesty (*ḥayā'*) is an Islamic ethical concept applied to both men and women. Dress practices, including *ḥijāb*, vary across cultures and legal systems. Some women understand veiling as devotion, identity, or autonomy; others experience coercion either to veil or unveil.

A rights-based approach emphasizes conscience, dignity, safety, and freedom from compulsion, while recognizing that Muslim women's own voices are diverse.

Muslim-Majority and Muslim-Minority Settings

In **Muslim-majority countries**, aspects of family law may be codified by the state as “Islamic law.” However, these codes are modern legal constructions, often influenced by colonial legal systems, nation-state bureaucracy, selected juristic opinions, and political priorities. The result may differ from classical *fiqh*.

In **Muslim-minority settings**, Muslims often follow civil law for marriage, divorce, inheritance, and custody, while using religious guidance for personal ethics or community mediation. Challenges include ensuring that informal religious processes do not undermine civil rights, especially for women facing domestic abuse, coercion, or unequal access to divorce.

In both settings, the key issue is accountability: religious norms, community expectations, and state laws should protect women's dignity, consent, safety, and legal agency.

Orientalist Perspectives and Their Limits

The term **orientalism** refers to Western scholarly, political, and cultural representations of “the East,” often shaped by colonial power. In discussions of Muslim women, orientalist narratives have sometimes portrayed Islam as uniquely oppressive and Muslim women as passive victims needing rescue. Such narratives can ignore colonial violence, local reform movements, class differences, and women's own religious commitments.

At the same time, criticism of orientalism should not be used to dismiss real injustices experienced by women in Muslim societies. A balanced approach avoids both extremes: it rejects stereotypes about Islam while also taking seriously the voices of women who challenge patriarchal interpretations and harmful practices.

Islamic Law and the Universal Declaration of Human Rights

The **Universal Declaration of Human Rights** is a modern international statement affirming human dignity, equality, freedom of belief, due process, education, property rights, and protection from discrimination. Muslim thinkers have responded to modern human rights in different ways.

Some argue that human rights and *sharī'a* share core ethical commitments: dignity, justice, welfare, family protection, and social responsibility. Others are concerned that international rights frameworks may reflect secular assumptions or insufficient attention to religious obligations.

The most productive discussions ask practical questions:

- Does a legal rule protect or undermine human dignity?
- Are women equal moral agents before the law?
- Is consent meaningful or merely formal?
- Are remedies available when rights are violated?
- Can religious freedom coexist with gender equality?
- Are interpretations open to review when they produce harm?

A gender-justice approach does not require erasing Islamic identity. It requires distinguishing divine guidance from fallible human interpretation and evaluating law through justice, mercy, and human dignity.

AI's Humanistic Approach to Sharia

An AI system should approach *sharī'a* with humility, accuracy, and human concern. It should not issue religious rulings as if it were a qualified jurist, nor should it reduce Islamic law to stereotypes. A humanistic AI approach would:

1. **Distinguish sources:** Separate Qur'an, *ḥadīth*, classical *fiqh*, state law, and cultural practice.
2. **Acknowledge diversity:** Recognize differences among Sunni, Shi'i, and other Muslim traditions, as well as the four Sunni legal schools.
3. **Prioritize safety:** In cases of abuse, coercion, or legal vulnerability, encourage professional legal, social, and protective support.
4. **Center dignity:** Treat women as full moral and legal agents, not as symbols in ideological debates.
5. **Avoid false certainty:** Identify contested issues and avoid presenting one interpretation as the only Islamic view when legitimate disagreement exists.
6. **Respect belief:** Support religiously meaningful choices while opposing coercion and harm.
7. **Promote justice-oriented reasoning:** Highlight *maqāṣid al-sharī'a*, *'adl*, *rahma*, and *karāma* as ethical tools in contemporary discussions.

Such an approach aligns with both responsible technology and the best traditions of ethical legal reasoning.

Toward Gender Justice in Sharia

Understanding women's rights under Islamic law requires moving beyond slogans. The Qur'an introduced moral and legal reforms in a specific historical context. Classical jurists developed diverse bodies of *fiqh* through rigorous but human interpretation. Muslim societies then applied, modified, restricted, or expanded those rules under changing political and cultural conditions.

Gender justice in *sharī'a* today depends on several commitments:

- Recovering the Qur'anic emphasis on justice, mercy, and dignity.
- Recognizing women's authority as interpreters, scholars, judges, and rights-holders.
- Reviewing inherited legal rules in light of changed social realities.
- Protecting consent, bodily integrity, property, education, and access to justice.
- Distinguishing religious principle from patriarchal custom.
- Engaging human rights norms critically but constructively.
- Encouraging reform through credible scholarship, community dialogue, and lawful institutions.

Islamic law is not a single static code. It is a vast interpretive tradition rooted in sacred sources and shaped by human reasoning. Women's rights within that tradition are best understood not as a closed question, but as an ongoing moral and legal conversation about what justice requires.

SEGMENTED DATA (2)

Understanding Women's Rights Under Islamic Law

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Historical Context

Islam emerged in seventh-century Arabia, where tribal customs shaped family life, inheritance, marriage, and social status. Qur'anic reforms introduced rights that were significant in that environment, including regulated marriage contracts, women's inheritance, restrictions on unlimited polygyny, and obligations toward widows, orphans, and divorced women.

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These theological approaches do not map neatly onto one position on women's rights. However, they influence debates over whether moral values such as justice and dignity can guide reinterpretation, how much weight is given to historical context, and how jurists balance scripture, reason, custom, and public welfare.

The Four Major Sunni Juristic Schools

The four major Sunni *madhāhib* (مذاهب), or juristic schools, developed sophisticated legal methods. They agree on core sources but differ in interpretation and legal reasoning.

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In matters affecting women, Hanafi law has sometimes been noted for recognizing a mature woman's capacity to contract her own marriage, though social and statutory rules vary widely. Hanafi doctrine also developed detailed rules on maintenance, divorce, dower (*mahr*), and property.

Maliki School

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Maliki jurisprudence has historically offered certain avenues for judicial divorce in cases of harm, abandonment, or failure of maintenance. Its attention to social welfare has made it important in modern reform discussions.

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Hanbali School

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Hanbali law has contributed to debates on marriage conditions, contractual stipulations, and family obligations. Some modern reformers have drawn on Hanbali doctrines allowing women to include conditions in marriage contracts, such as restrictions related to polygyny or residence.

Women's Rights in Key Areas

Marriage

In Islamic law, marriage (*nikāḥ*) is a contract with ethical and spiritual dimensions. A woman's consent is generally treated as necessary, though juristic schools differ on the role of the guardian (*walī*). The marriage contract may include a dower (*mahr*) owed to the bride, not her family. In some legal traditions, women may negotiate conditions in the contract.

Gender justice concerns arise when social pressure, child marriage, forced marriage, or unequal bargaining power undermines consent. Modern reforms often focus on minimum marriage age, registration, judicial oversight, and enforceable contract conditions.

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Classical law recognized multiple forms of divorce, including husband-initiated divorce (*ṭalāq*), wife-initiated divorce through compensation (*khul'*), and judicial divorce (*tafrīq* or *faskh*) under certain conditions. The balance of access to divorce has varied greatly by school and state law.

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Inheritance and Property

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Women's property ownership is well established in classical law. The justice question today often concerns whether legal rules, economic realities, and family expectations still align. In societies where women also provide financially, some scholars argue for renewed interpretation through the objectives of justice and welfare.



Education and Religious Authority

Islamic tradition values knowledge (*ʿilm*). Historically, women transmitted *ḥadīth*, taught, endowed schools, and participated in religious life, though institutional authority was often male-dominated. Contemporary Muslim women serve as scholars, judges in some jurisdictions, professors, activists, and legal reform advocates.

A gender-just approach asks not only whether women may learn, but whether they can participate in interpreting the tradition that governs their lives.

Modesty and Public Life

Modesty (*ḥayāʾ*) is an Islamic ethical concept applied to both men and women. Dress practices, including *ḥijāb*, vary across cultures and legal systems. Some women understand veiling as devotion, identity, or autonomy; others experience coercion either to veil or unveil.

A rights-based approach emphasizes conscience, dignity, safety, and freedom from compulsion, while recognizing that Muslim women's own voices are diverse.

Muslim-Majority and Muslim-Minority Settings

In **Muslim-majority countries**, aspects of family law may be codified by the state as “Islamic law.” However, these codes are modern legal constructions, often influenced by colonial legal systems, nation-state bureaucracy, selected juristic opinions, and political priorities. The result may differ from classical *fiqh*.

In **Muslim-minority settings**, Muslims often follow civil law for marriage, divorce, inheritance, and custody, while using religious guidance for personal ethics or community mediation. Challenges include ensuring that informal religious processes do not undermine civil rights, especially for women facing domestic abuse, coercion, or unequal access to divorce.

In both settings, the key issue is accountability: religious norms, community expectations, and state laws should protect women's dignity, consent, safety, and legal agency.

Orientalist Perspectives and Their Limits

The term **orientalism** refers to Western scholarly, political, and cultural representations of “the East,” often shaped by colonial power. In discussions of Muslim women, orientalist narratives have sometimes portrayed Islam as uniquely oppressive and Muslim women as passive victims needing rescue. Such narratives can ignore colonial violence, local reform movements, class differences, and women's own religious commitments.

At the same time, criticism of orientalism should not be used to dismiss real injustices experienced by women in Muslim societies. A balanced approach avoids both extremes: it rejects stereotypes about Islam while also taking seriously the voices of women who challenge patriarchal interpretations and harmful practices.

Islamic Law and the Universal Declaration of Human Rights

The **Universal Declaration of Human Rights** is a modern international statement affirming human dignity, equality, freedom of belief, due process, education, property rights, and protection from discrimination. Muslim thinkers have responded to modern human rights in different ways.

Some argue that human rights and *sharī'a* share core ethical commitments: dignity, justice, welfare, family protection, and social responsibility. Others are concerned that international rights frameworks may reflect secular assumptions or insufficient attention to religious obligations.

The most productive discussions ask practical questions:

- Does a legal rule protect or undermine human dignity?
- Are women equal moral agents before the law?
- Is consent meaningful or merely formal?
- Are remedies available when rights are violated?
- Can religious freedom coexist with gender equality?
- Are interpretations open to review when they produce harm?

A gender-justice approach does not require erasing Islamic identity. It requires distinguishing divine guidance from fallible human interpretation and evaluating law through justice, mercy, and human dignity.

AI's Humanistic Approach to Sharia

An AI system should approach *sharī'a* with humility, accuracy, and human concern. It should not issue religious rulings as if it were a qualified jurist, nor should it reduce Islamic law to stereotypes. A humanistic AI approach would:

1. **Distinguish sources:** Separate Qur'an, *ḥadīth*, classical *fiqh*, state law, and cultural practice.
2. **Acknowledge diversity:** Recognize differences among Sunni, Shi'i, and other Muslim traditions, as well as the four Sunni legal schools.
3. **Prioritize safety:** In cases of abuse, coercion, or legal vulnerability, encourage professional legal, social, and protective support.
4. **Center dignity:** Treat women as full moral and legal agents, not as symbols in ideological debates.
5. **Avoid false certainty:** Identify contested issues and avoid presenting one interpretation as the only Islamic view when legitimate disagreement exists.
6. **Respect belief:** Support religiously meaningful choices while opposing coercion and harm.
7. **Promote justice-oriented reasoning:** Highlight *maqāṣid al-sharī'a*, *'adl*, *raḥma*, and *karāma* as ethical tools in contemporary discussions.

Such an approach aligns with both responsible technology and the best traditions of ethical legal reasoning.

Toward Gender Justice in Sharia

Understanding women's rights under Islamic law requires moving beyond slogans. The Qur'an introduced moral and legal reforms in a specific historical context. Classical jurists developed diverse bodies of *fiqh*

through rigorous but human interpretation. Muslim societies then applied, modified, restricted, or expanded those rules under changing political and cultural conditions.

Gender justice in *sharī'a* today depends on several commitments:

- Recovering the Qur'anic emphasis on justice, mercy, and dignity.
- Recognizing women's authority as interpreters, scholars, judges, and rights-holders.
- Reviewing inherited legal rules in light of changed social realities.
- Protecting consent, bodily integrity, property, education, and access to justice.
- Distinguishing religious principle from patriarchal custom.
- Engaging human rights norms critically but constructively.
- Encouraging reform through credible scholarship, community dialogue, and lawful institutions.

Islamic law is not a single static code. It is a vast interpretive tradition rooted in sacred sources and shaped by human reasoning. Women's rights within that tradition are best understood not as a closed question, but as an ongoing moral and legal conversation about what justice requires.